

# Remuneration and Facilities of Office Bearers and Members of Federal Parliament Act, 2016

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2. Definitions: Unless the subject or context otherwise requires, in this Act, -

(a) "Chairperson" means the Chairperson of the National Assembly.

(b) "Deputy Speaker" means the Deputy Speaker of the House of Representatives.

(c) "Vice-Chairperson" means the Vice-Chairperson of the National Assembly.

(d) "Office-bearer" means the Speaker, Chairperson, Leader of the Opposition Party, Leader of the Ruling Party, Chief Whip of the Ruling Party, Deputy Speaker, Vice-Chairperson, Chief Whip of the Opposition Party, Chief Whip of the Ruling Party, Chief Whip of a Party, Whip of the Ruling Party, Whip of the Opposition Party, and Chairperson, and the said term also denotes the office-bearer of the Legislature-Parliament.

(e) "Leader of the Opposition Party" means the person chosen as the leader of the parliamentary party by the following party:

(1) The party having the highest number of members among the parties, other than the party forming the Council of Ministers or supporting the formation of the Council of Ministers, which has ten percent or more members in the House of Representatives or the National Assembly,

(2) If there are more than one party having ten percent or more members in the House of Representatives or the National Assembly with an equal number of members, any one party recognized by those parties on the basis of mutual agreement,

(3) If mutual agreement cannot be reached pursuant to sub-clause (2), the party which has received written consent from the highest number of members of the House of Representatives or the National Assembly, other than the party forming the Council of Ministers or supporting the formation of the Council of Ministers, for the purpose of choosing the Leader of the Opposition Party,

(4) If there is no written consent pursuant to sub-clause (3), or if there is no party having ten percent or more members in the House of Representatives or the National Assembly other than the party forming the Council of Ministers or supporting the formation of the Council of Ministers, the party designated by the Speaker or Chairperson for the House of Representatives or the National Assembly, or

(5) If a person is already the Leader of the Opposition Party and due to any reason a party attains more than ten percent of members in the House of Representatives or the National Assembly and becomes the party with the highest number of members, such party.

(6) For the purpose of this clause, the concerned party or member shall submit the mutual agreement pursuant to sub-clause (2) within fifteen days from the date of the first session of the House of Representatives or the National Assembly after the election of members of the House of Representatives, and the written consent pursuant to sub-clause (3) within fifteen days from the date on which mutual

agreement could not be reached.

(f) "Chief Whip of the Opposition Party" means the member of the House of Representatives designated by the Leader of the Opposition Party to work as the Chief Whip of the Opposition Party in the House of Representatives.

(g) "Leader of the Ruling Party" means any member of the National Assembly, other than a minister nominated by the Prime Minister, to conduct government business in the National Assembly on behalf of the ruling party.

(h) "Chief Whip of the Ruling Party" means the member of the House of Representatives designated by the leader of the parliamentary party having a majority in the House of Representatives or, if there is no party having such a majority, by the Prime Minister to work as the Chief Whip of the Ruling Party in the House of Representatives.

(i) "Chief Whip of the Ruling Party" means the member of the House of Representatives designated by the leader of the parliamentary party of a party participating in the government, having more than ten percent of members in the House of Representatives, if there is no party having a majority in the House of Representatives, to work as the Chief Whip of that party.

(j) "Chief Whip of a Party" means the member of the House of Representatives designated by the leader of a party having more than ten members in the House of Representatives to work as the Chief Whip of that party.

(k) "Whip of the Ruling Party" means the member of the House of Representatives designated by the leader of the parliamentary party having a majority in the House of Representatives or, if there is no party having such a majority, by the Prime Minister to work as the Whip of the Ruling Party in the House of Representatives.

(l) "Whip of the Opposition Party" means the member of the House of Representatives designated by the Leader of the Opposition Party to work as the Whip of the Opposition Party in the House of Representatives.

(m) "Member" means a member of the House of Representatives or the National Assembly other than a minister or office-bearer, and the said term also denotes a member of the Legislature-Parliament.

(n) "Chairperson" means the chairperson of any committee of the House of Representatives or the National Assembly.

(o) "Speaker" means the Speaker of the House of Representatives.

(p) "Committee" means any committee of the House of Representatives or the National Assembly, and the said term also denotes a joint committee of both Houses of Parliament.

3. Remuneration: (1) An office-bearer and member shall receive remuneration and special allowance as specified in Schedule 1 from the date of their election or nomination:

Provided that an office-bearer and member holding office at the time of commencement of this Act shall receive remuneration under this section only from the date of commencement of this Act.

(2) If an office-bearer or member ceases to hold office before the expiry of their term due to death, resignation, or dissolution of the House of Representatives, such office-bearer or member shall, in addition to the remuneration payable up to the date their membership subsists, be given an additional amount equivalent to one month's remuneration.

(3) The amount receivable pursuant to sub-section (2) shall be given, as the case may be, to such office-bearer or member or to the person designated by them. If the office-bearer or member dies and has not designated any person or the designated person is not alive, such amount shall be given to their nearest heir.

(4) If an office-bearer or member ceases to hold office due to lack of qualification, such office-bearer or member shall not be given the additional amount under sub-section (2). 4. Allowances of Office-Bearers and Members: (1) An office-bearer and member shall be given an amount as per Schedule 1 as meeting allowance for each day of participation in any House of the Federal Parliament or any committee or sub-committee or joint sitting of both Houses:

Provided that if meetings of the House and a committee are held on the same day, the office-bearer and member shall receive only one day's allowance.

Separate allowances shall not be given for meetings of the House and committee.

(2) An office-bearer or member participating in a meeting of a House at the commencement of a session of any House of the Federal Parliament, or in a meeting of any committee or sub-committee when no session of the House is in progress, shall be given allowance for each day from three days before the commencement of the meeting until three days after the conclusion of the meeting, at the rate under sub-section (1):

Provided that an office-bearer or member who is absent at the commencement of a meeting of the House or committee shall receive allowance only for three days prior to the day they were present.

(3) When coming from their permanent residence to participate in a session of Parliament or a committee meeting, and when returning to their area of residence after participation, the office-bearer and member shall be given allowance under section 9:

Provided that if the constituency from which an office-bearer or member is elected and the area of their permanent residence are different, such allowance shall be given when coming from and going to any one of those two places. 5. Provision of Private Secretariat and Staff: (1) For the duration of their term, an office-bearer and member shall receive staff facilities for their private secretariat as specified in Schedule 2.

(2) An office-bearer shall be provided with necessary furniture and other goods as specified in Schedule 2 for the duration of their term. The furniture and goods so provided shall be returned by them after the expiry of their term:

Provided that if furniture is not provided to an office-bearer, an amount under sub-section (6) of section 6 shall be provided to make arrangements for furniture.

(3) For the office operation, stationery, and hospitality of the private secretariat, an office-bearer and member shall be provided with an amount as specified in Schedule 2. 6. Housing Facility: (1) An office-bearer and member shall be provided with a government house on behalf of the Government of Nepal for housing.

If such a house is not arranged, the office-bearer and each member who does not have a house in the Kathmandu Valley shall be given an amount as per Schedule 1 monthly as housing facility. (2) Notwithstanding anything contained in sub-section (1), an office-bearer or member having a house in the Kathmandu Valley shall be given half of the amount under that sub-section as housing maintenance and upkeep allowance. (3) The maintenance and upkeep of a house arranged on behalf of the Government of Nepal pursuant to sub-section (1) shall be done by the Government of Nepal. (4) If an amount is provided as housing facility pursuant to sub-section (1), an office-bearer shall be provided with an amount as specified in

Schedule 1 to arrange for a private secretariat and guard house. (5) An office-bearer or member shall receive the facility under this section for fifteen days from the date of expiry of their term. (6) If housing facility is not arranged by the Government of Nepal pursuant to sub-section (1) or if furniture is not provided under sub-section (2) of section 5, an office-bearer and member shall be provided with an amount as per Schedule 1 for one term of the Federal Parliament to make arrangements for furniture in the residence: Provided that if an office-bearer or member has already received furniture facility once in the capacity of a minister or office-bearer, they shall not be given the furniture facility under this sub-section within the same term of the Federal Parliament. 7. Vehicle and Fuel Facility: (1) Each office-bearer shall be provided with one vehicle and vehicle fuel and lubricant as specified in Schedule 1. (2) An office-bearer receiving fuel and lubricant pursuant to sub-section (1) shall not be required to submit bills or vouchers. (3) An office-bearer may use the vehicle received under this section for seven days from the date of expiry of their term. (4) The maintenance and upkeep of the vehicle provided to an office-bearer pursuant to this section shall be done on behalf of the Government of Nepal. (5) A member who has not been provided with a vehicle facility shall be given an amount as per Schedule 1 as transportation facility for each day of participation in any House of the Federal Parliament or any committee or sub-committee or joint sitting of both Houses. 8.

Electricity, Water, and Communication Facility: (1) The Government of Nepal shall bear the full electricity and water tariff for the residence of the Speaker and Chairperson, and the full tariff (excluding deposit and other expenses for installing two telephone lines including one internet line and telephone penalties) for the two telephone lines. (2) An office-bearer or member other than the Speaker and Chairperson, if provided with a government house, shall be given a lump sum amount as per Schedule 1 for electricity, water, telephone including internet, and newspapers for such house. (3) If a government house cannot be arranged for an office-bearer or member other than the Speaker and Chairperson, the Government of Nepal shall bear the deposit and other expenses for installing one telephone line including internet at the residence where they live, and an amount under sub-section (2) shall be provided for the electricity, water, and telephone tariff at such residence. (4) When an office-bearer or member has to change residence, the installation cost for shifting the telephone line shall be borne by the Government of Nepal for a maximum of two times within one term of the Federal Parliament. (5) If an office-bearer or member entitled to a telephone under this section ceases to be a member of the Federal Parliament for any reason other than disqualification, they may, if they so desire within six months from the date of ceasing membership, retain the telephone in their ownership by paying the deposit amount incurred at the time of installing the said telephone line. 9. Daily and Travel Allowance: While traveling within or outside Nepal in connection with the work of the Federal Parliament, an office-bearer or member shall be given daily and travel allowance pursuant to the prevailing law. 10. Leadership Allowance: When an office-bearer or member goes abroad as the leader of a delegation, they shall receive an additional amount equal to fifty percent of the daily allowance they are entitled to, as leadership allowance. 11.

Bills and Vouchers etc. to be Submitted: (1) For payment of travel allowance, when coming to a session for the first time, bills and vouchers for expenses incurred on air, rail, and bus tickets, and in the case of travel on foot, a certified certificate of the distance traveled, shall be submitted with the travel bill. (2) Until the travel expenses change, the amount equivalent to the daily and travel allowance bill with certified bills and vouchers attached once pursuant to sub-section (1) shall, from the second time onwards, be provided by the Secretariat of the Federal Parliament to the concerned office-bearer or member as a lump sum expense for daily and travel allowance for coming to and going from meetings of the House or committee. 12. No Duplicate Travel Allowance: If a notice is published that a meeting of the House will commence while a committee meeting is in progress, or that a committee meeting will commence while a House meeting is in

progress, and the period between the date on which the House or committee meeting is to commence and the date on which the ongoing House or committee meeting concludes does not differ by more than seven days, an office-bearer or member participating in the ongoing meeting shall receive travel allowance facility under this Act only after the conclusion of the later-commenced House or committee meeting. 13. Passport Facility: When going on a visit abroad in connection with the work of the Federal Parliament or representing Nepal, an office-bearer and member shall be given a diplomatic passport. 14. Medical Treatment Arrangement: (1) Free service of a senior physician shall be made available to an office-bearer and member for treatment at the Secretariat of the Federal Parliament. (2) If a physician recommends pursuant to sub-section (1) that an office-bearer or member requires hospital treatment, the expenses as per the bill incurred during hospital treatment of such office-bearer or member shall be borne by the Secretariat of the Federal Parliament: Provided that in case of emergency requiring hospitalization or hospitalization while outside the valley, such recommendation of a physician shall not be necessary. The fact of such hospitalization shall be informed to the Secretariat of the Federal Parliament through the fastest possible means. 15.

Office Facility: (1) An office-bearer shall be provided with a work room at the Secretariat of the Federal Parliament to establish their office. (2) Necessary furniture, computer, and telephone shall be provided in the work room pursuant to sub-section (1). 16. Facilities to be Received by Chairperson of an Ad Hoc Committee and Coordinator and Members of a Sub-Committee: (1) If any committee of a temporary nature is formed in the House of Representatives or the National Assembly for a specific purpose, the Chairperson and members of such committee and the Coordinator and members of a sub-committee formed under that committee shall receive meeting allowance under sub-section (1) of section 4. (2) The Chairperson of a committee formed pursuant to sub-section (1) shall be provided with one vehicle with a driver and fuel facility equivalent to that provided to a Chairperson, and other members and the Coordinator and members of a sub-committee shall be given an amount as prescribed as transportation facility under sub-section (5) of section 7. 17. Special Facility for Visually Impaired and Disabled Office-Bearer or Member: (1) If it appears to the Speaker or Chairperson that an office-bearer or member is visually impaired or physically disabled and requires the service of an attendant for mobility, one attendant shall be provided to accompany such office-bearer or member. (2) An attendant accompanying an office-bearer or member pursuant to sub-section (1) shall receive the following facilities: (a) Daily allowance: Half of the daily allowance receivable by the office-bearer or member. (b) Travel allowance: Facility equivalent to that received by the office-bearer or member when traveling. (c) Clothing allowance: As per Schedule 1. 18.

Advance: (1) An office-bearer or member may, upon request, receive an advance of up to a maximum of three months of the remuneration and housing facility amount receivable under this Act, to be settled within the same fiscal year: Provided that, (1) If an office-bearer or member is diagnosed with a serious illness requiring treatment in a hospital abroad, or if a justified basis exists indicating any such special circumstances, the Secretariat of the Federal Parliament may, with the approval of the Speaker or Chairperson, give an advance of up to a maximum of one year's remuneration amount to such office-bearer or member. (2) Notwithstanding anything contained in sub-clause (1), if the amount released from the budget is insufficient or if the term of the office-bearer or member is likely to expire within three months, the advance may not be given or may be given only for a shorter period, as the case may be. (2) Until the advance amount given under sub-section (1) is settled, the full monthly remuneration or housing facility receivable by the office-bearer or member shall be deducted and settled. (3) If an office-bearer or member who takes an advance under this section ceases to be a member of the Federal Parliament for any reason, the amount remaining to be recovered from them shall be recovered pursuant to the prevailing law: Provided that if an

office-bearer who has taken a remuneration advance dies before the advance is settled, the remuneration advance amount remaining to be recovered from them shall be waived. 19. Financial Assistance: (1) If an office-bearer or member dies while their term is still in effect, the Government of Nepal shall provide financial assistance to their family as per Schedule 1. (2) If an office-bearer or member becomes physically or mentally disabled for any reason and is unable to remain a member of the Federal Parliament, such office-bearer or member shall be provided with financial assistance for disability as per Schedule 1. 20. Payment of Amount for Remuneration, Allowance, and Facility: The remuneration, allowance, and amount for other facilities receivable by an office-bearer and member under this Act shall be received from the Secretariat of the Federal Parliament: Provided that if an office-bearer or member opens an account in any bank in consultation with the Secretariat of the Federal Parliament and gives written notice to deposit the amount for remuneration, allowance, or other facilities receivable by them into such account, the Secretariat of the Federal Parliament shall deposit such amount into that account. 21.

Not Entitled to Allowance: (1) Notwithstanding anything contained elsewhere in this Act, if an office-bearer or member is suspended from the House, for the entire period of such suspension, and if an office-bearer or member is in custody, imprisonment, or on bail on a criminal charge pursuant to a court order, for the period of such custody, imprisonment, or bail, they shall not receive any kind of allowance under this Act. (2) If an office-bearer is nominated or elected to two positions, they shall receive the facility of only one position. 22. Security Arrangement: For the security of an office-bearer, the Government of Nepal shall arrange security personnel as specified in Schedule 2. 23. Remuneration and Facility to be Provided Under this Act: The office-bearer and member of the Legislature-Parliament holding office at the time of commencement of this Act shall be provided with remuneration and facility under this Act. 24. To Receive Only One Facility: If a person receiving pension from the government fund is elected or nominated as an office-bearer or member, such office-bearer or member shall receive only one of the facilities: pension or facility under this Act. 25. Power to Amend Schedule: The Government of Nepal may, by publishing a notice in the Nepal Gazette, amend the Schedule in a manner that does not cause disadvantage to the office-bearer or member. 26. Repeal and Saving: (1) The Act Relating to Remuneration and Facilities of Office-Bearers and Members of Parliament, 2052 is hereby repealed. (2) All acts and proceedings done under the Act Relating to Remuneration and Facilities of Office-Bearers and Members of Parliament, 2052 shall be deemed to have been done under this Act. Schedule-1 (Amended by the Act to Amend Some Nepal Acts, 2075. Relating to sections 3, 4, 6, 7, 8, 17 and 19) Facilities to be Received by Office-Bearer and Member S.No. Type of Facility Unit Rate Speaker and Chairperson Leader of Opposition Party in House of Representatives, Deputy Speaker and Vice-Chairperson Leader of Opposition Party in National Assembly, Leader of Ruling Party and Chief Whip Chief Whip of Opposition Party, Chief Whip of Ruling Party and Chairperson Chief Whip of Party, Whip of Ruling Party and Whip of Opposition Party Member 1. Remuneration Per Month Rs. 67,320.- 60,970.- 60,970.- 60,970.- 57,780.- 55,230.- 2. Special Allowance Per Month Rs. 1,000.- 1,000.- 1,000.- 1,000.- 1,000.- 1,000.- 3. Meeting Allowance Per Day Rs. 1000.- 1000.- 1000.- 1000.- 1000.- 1000.- 4. Communication Facility (Telephone, Internet, Newspaper) Per Month Rs. 3,000.- 3,000.- 3,000.- 3,000.- 3,000.- 3,000.- 5. Housing Facility Per Month Rs. 28,275.- 25,608.- 25,608.- 25,608.- 24,268.- 18,000.- 6. Furniture Expense Lump Sum Rs. 15,000.- 15,000.- 15,000.- 15,000.- 15,000.- 15,000.- 7. Private Secretariat Arrangement Per Month Rs.

2,000.- 1,750.- 1,750.- 1,750.- 1,200.- - 8. Guard House Per Month Rs. 2,000.- 1,750.- - 1,750.- - 9. Vehicle Fuel Per Month Litre 250 230 230 200 150 - 10. Lubricant Quarterly Litre 10 5 5 5 5 - 11. Transportation Facility Per Day Rs. - - - - 1,000.- 12. Electricity, Water Per Month Rs. As per bill 2,000.- 2,000.- 2,000.- 2,000.- 2,000.- 13. Daily Travel Allowance Per Day Rs. 3,000.- 2,500.- 2,500.- 2,500.- 2,500.- 14.

Travel Insurance Per Trip Rs. 10,00,000.- 10,00,000.- 10,00,000.- 10,00,000.- 10,00,000.- 10,00,000.- 15. Clothing Allowance for Attendant (including attendant accompanying visually impaired or physically disabled office-bearer) Annual Rs. 4,000.- 16. Financial Assistance to Family of Deceased Office-Bearer or Member Lump Sum Rs. 2,00,000.- 2,00,000.- 2,00,000.- 2,00,000.- 2,00,000.- 2,00,000.- 17. Financial Assistance to Disabled Office-Bearer or Member Lump Sum Rs. 50,000.- 50,000.- 50,000.- 50,000.- 50,000.- 50,000.- Schedule-2 (Relating to sections 5 and 22) Other Facilities to be Given to Office-Bearer and Member Private Secretariat S.No. Type of Facility Unit Rate Speaker and Chairperson Leader of Opposition Party in House of Representatives, Deputy Speaker and Vice-Chairperson Leader of Opposition Party in National Assembly, Leader of Ruling Party and Chief Whip of Ruling Party Chief Whip of Opposition Party, Chief Whip of Ruling Party and Chairperson Chief Whip of Party, Whip of Ruling Party and Whip of Opposition Party Member 1. Private Secretary (Gazetted First Class) Person 1 - - - - - Changed by notice published in Nepal Gazette dated 2062.07.17.2. Private Secretary (Gazetted Second Class) Person 1 - - - - - Changed by notice published in Nepal Gazette dated 2062.07.17.3. Private Secretary (Gazetted Third Class) Person 1 - - - - - 4. Computer Operator (Non-Gazetted First Class) Person 1 1 1 1 - - 5. Driver (First Level) Person 2 2 2 2 2 - 6. Office Assistant (First Level) Person 2 2 1 1 1 - 7. Computer with Printer Unit 1 1 1 1 - - 8. Bicycle Unit 2 2 1 1 1 - 9. Hospitality Per Month Rs. 25,000/- 2,000/- 2,000/- 17,000/- 15,000/- 1,000/- 10. Bodyguard, Officer Person 1 1 - - - - 11. Bodyguard, Police (Assistant Inspector) Person - - 1 - - 12. Billardar Guard Person 1 1 - - - - 13. Head Police Constable Person - - - 1 - - 14. Military Soldier (Sepoy) Person 10 10 - - - - 15.